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Collateral Consequences Checklist

The effects of a conviction that no one reads out in court.

A sentence is only part of what a conviction changes. Scattered through state and federal law are thousands of other effects, on licenses, housing, jobs, benefits, and more, that apply automatically and are rarely explained. They are sometimes called invisible punishments because no one announces them. This checklist helps you find the ones that touch your life so nothing blindsides you later.

Which consequences apply depends on your specific conviction and your state. Use the free national database in the sources line below to look up yours, and ask your lawyer about the ones that matter most to you.

Work and licensing

- ☐ Does my conviction affect a professional or occupational license I hold or want?
- ☐ Are there jobs or industries now closed to me, and for how long?
- ☐ Do I have to disclose this conviction on job applications in my state?

Housing

- ☐ Does this affect eligibility for public or subsidized housing?
- ☐ Can a landlord use this conviction to deny me, and are there limits in my state?

Money and benefits

- ☐ Does this affect any federal or state benefits I receive or may need?
- ☐ Does it affect student financial aid?

Rights and civic life

- ☐ Does this affect my right to vote, and when is it restored?
- ☐ Does this affect firearm rights?
- ☐ Does it affect jury service or holding public office?

Family and immigration

- ☐ Could this affect custody, adoption, or foster care?
- ☐ If I am not a citizen, could this affect my immigration status? (Ask an immigration attorney; the stakes are high.)

Driving and travel

- ☐ Does this affect my driver's license?
- ☐ Could it affect international travel or a passport?

What to do with what you find

- Look up your specific conviction in the national database (see sources). It is organized by consequence and by state.
- Make a short list of the consequences that actually touch your life, and take it to your lawyer.
- Ask which are permanent and which can be lifted, waived, or ended after time. Some can.

The consequences I most need answers about:

Sources and further reading: *National Inventory of Collateral Consequences of Conviction* (niccc.nationalreentryresourcecenter.org), a free database of collateral consequences built by the American Bar Association under a U.S. Department of Justice grant.

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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